

Amendment No. 1 to SB1082

Gardenhire
Signature of Sponsor

AMEND Senate Bill No. 1082

House Bill No. 578*

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Section 39-17-1324, is amended by deleting subdivision (i)(1) and substituting:

(1) "Dangerous felony" means:

- (A) First degree murder, as defined in § 39-13-202;
- (B) Second degree murder, as defined in § 39-13-210;
- (C) Voluntary manslaughter, as defined in § 39-13-211;
- (D) Aggravated kidnapping, as defined in § 39-13-304;
- (E) Especially aggravated kidnapping, as defined in § 39-13-305;
- (F) Involuntary labor servitude, as defined in § 39-13-307;
- (G) Trafficking for forced labor or services, as defined in § 39-13-308;
- (H) Trafficking for commercial sex acts, as defined in § 39-13-309;
- (I) Aggravated human trafficking, as defined in § 39-13-316;
- (J) Robbery, as defined in § 39-13-401;
- (K) Aggravated robbery, as defined in § 39-13-402;
- (L) Especially aggravated robbery, as defined in § 39-13-403;
- (M) Carjacking, as defined in § 39-13-404;
- (N) Aggravated rape, as defined in § 39-13-502;
- (O) Rape, as defined in § 39-13-503;
- (P) Aggravated sexual battery, as defined in § 39-13-504;
- (Q) Rape of a child, as defined in § 39-13-522;

- (R) Sexual battery by an authority figure, as defined in § 39-13-527;
- (S) Aggravated rape of a child, as defined in § 39-13-531;
- (T) Especially aggravated rape, as defined in § 39-13-534;
- (U) Especially aggravated rape of a child, as defined in § 39-13-535;
- (V) Aggravated burglary, as defined in § 39-13-1003;
- (W) Especially aggravated burglary, as defined in § 39-13-1004;
- (X) Aggravated stalking, as defined in § 39-17-315(c);
- (Y) Especially aggravated stalking, as defined in § 39-17-315(d);
- (Z) Initiating the process intended to manufacture methamphetamine, as defined in § 39-17-435;
- (AA) A felony involving the sale, manufacture, distribution, or possession with intent to sell, manufacture, or distribute a controlled substance or controlled substance analogue, as defined in part 4 of this chapter; or
- (BB) Any attempt, as defined in § 39-12-101, to commit a dangerous felony;

SECTION 2. Tennessee Code Annotated, Section 39-17-1324, is amended by designating subsection (d) as subdivision (d)(1) and adding the following subdivision (d)(2):

(2) A lesser included offense of the predicate dangerous felony named in the indictment or presentment is included in the indictment or presentment by implication if the lesser included offense is a dangerous felony, as defined in subdivision (i)(1).

SECTION 3. This act takes effect July 1, 2025, the public welfare requiring it.